

Bill: H. R. 9510 (illustrative; the Clerk assigns the number at introduction), 119th Congress, 2d Session. **Refer to:** Rule XII, clause 7(c)(1), Rules of the House

Constitutional Authority Statement

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Independent research draft. Not an enacted law and not legal advice; not endorsed by the FDA, HHS, or any Member of Congress.

Subject

1. The formal statement

The operative submission is a single sentence; the sections that follow explain it and are not part of the printed statement.

Power invoked: Article I, Section 8, Clause 3 (the Commerce Clause)

As supplemented by: Article I, Section 8, Clause 18 (Necessary and Proper)

Statement: Congress has the power to enact this legislation pursuant to the foregoing.

2. Why the Commerce Clause

The Federal Food, Drug, and Cosmetic Act has rested on the Commerce Clause since 1938, and medical devices, their software, and robot-patient interaction code are quintessential articles of interstate commerce. Because the bill amends that Act, it draws on the same constitutional source and adds no new jurisdictional theory.

Figure placeholder (Images/authority.png). The float, caption, and \label mirror the VVUQ-02 figures; replace the box with \includegraphics.

Figure 1: Figure 1. Placeholder schematic tying the device authorities to Clause 3.

3. Rule XII and eHopper submission

Under Rule XII, clause 7(c)(1), a bill may not be introduced unless the sponsor submits a statement citing the constitutional power; the statement accompanies the measure through the electronic hopper at introduction.

Item	Detail
Governing rule	Rule XII, clause 7(c)(1)
Primary citation	Art. I, § 8, cl. 3 (Commerce)
Supporting citation	Art. I, § 8, cl. 18 (Necessary and Proper)
How submitted	with the measure via the eHopper

Table 1: Table 1. Filing summary (modeled on VVUQ-05 Table 1).

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Cite This Statement

Kawchak K. Constitutional Authority Statement for H. R. 9510. Zenodo. 2026; 10.5281/zenodo.xxxxxxxx.

References

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